

23STCV27059 23STCV27059

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 23STCV27059 Hearing Date: September 2, 2026 Dept: 11

Diouf (23STCV27059)

Tentative

Ruling Re: Motion to Approve Private Attorneys General Act ("PAGA") Settlement

Date: 9/2/26

Time: 11:00 am

Moving Party: Sadyr Diouf
("Plaintiff")

Opposing Party: None

Department: 11

Judge: Bruce Iwasaki

TENTATIVE RULING

Plaintiff's motion to approve PAGA settlement
is granted.

The representative PAGA claim is dismissed
without prejudice.

BACKGROUND

This is a wage-and-hour case. Plaintiff originally filed it as a class action. He amended the complaint twice, adding, in part, a PAGA claim.

In November 2024, Plaintiff filed a request to dismiss the class claims.

Also, in November 2024, the parties agreed to arbitrate Plaintiff's individual claims and to stay the representative PAGA claim pending completion of the arbitration.

Recently, the parties settled Plaintiff's individual claims. The settlement encompasses Plaintiff's individual PAGA claim and calls for the representative PAGA claim to be dismissed without prejudice.

Here, Plaintiff requests approval of the portion of the settlement pertaining to the individual PAGA claim.

LAW

PAGA permits an "aggrieved employee" to recover Labor Code civil penalties on the LWDA's behalf, if the LWDA declines to collect the penalties itself. (Cal. Lab. Code, § 2699, subd. (a); see also *Mejia v. Merchants Building Maintenance, LLC* (2019) 38 Cal.App.5th 723, 732-733.) The California Supreme Court has distinguished between Labor Code "civil penalties" that are "intended to 'punish the employer' for wrongdoing, often 'without reference to the actual damage sustained'" and "statutory damages" that "primarily seek to compensate employees for actual losses incurred" – a PAGA action can recover only the former. (*Z.B., N.A. v. Superior Court* (2019) 8 Cal.5th 175, 182, 198 [holding that Labor Code section 558 "amount sufficient to recover unpaid wages" is not a "civil penalty" recoverable via PAGA].) "A PAGA action is 'fundamentally a law enforcement action designed to protect the public and not to benefit private parties.'" (*Mejia*, supra, 38 Cal.App.5th at 732; see also *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 381.)

PAGA requires a court to “review and approve any settlement of any civil action filed” under PAGA, but it does not provide review and approval standards or guidelines. (Cal. Lab. Code, § 2699, subd. (l)(2).) The California Supreme Court has interpreted PAGA as requiring courts to ensure that “any negotiated [PAGA] resolution is fair to those affected.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 549, emphasis added.) The parties affected by a PAGA settlement include: (1) the LWDA, who receives 65% of settlement funds and is “bound by the outcome of the proceeding to adjudicate the employee’s PAGA claim” (Mejia, supra, 38 Cal.App.5th at 732); (2) the aggrieved employees, party and non-party, who receive 35% percent of settlement funds and are, like the LWDA, bound by a PAGA action judgment; (3) plaintiffs’ counsel, who may be awarded reasonable attorney fees and costs; and (4) defendant, who pays the settlement.[1]

Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56 provides greater detail about the standard courts should apply when evaluating PAGA settlements. The opinion adopts the “fair, reasonable, and adequate” standard used in class settlements.

DISCUSSION

Class Claims

The Court’s own research indicates that the class claims remain alive. On November 20, 2024, Plaintiff filed a request to dismiss the class claims. The status designation in eCourt merely states that the request was received. There is no subsequent order granting the request. (See, e.g., 11/21/24 Order Re: Joint Stipulation to Arbitration, p. 4 [stating (1) “[a]ll Plaintiff’s individual claims in the SAC (including without limitation Plaintiff’s individual PAGA claim) shall proceed in arbitration with JAMS in accordance with his signed Arbitration Agreement[.]” and (2) “Plaintiff’s non-individual representative PAGA claims shall be stayed pending the completion of Plaintiff’s arbitration proceeding[.]”].) This is likely due to Plaintiff’s failure to file a declaration under Rule of Court 3.770 in conjunction with the request for dismissal.

The Court grants Plaintiff leave to file the requisite declaration. At the

September 2nd hearing, the Court will set a new date for a hearing to determine whether the class claims should be dismissed without prejudice.

Settlement Terms

Gross settlement amount = \$40,000.00

– unpaid wages = \$400.00

– non-wage damages = \$16,680.04

– individual PAGA claim = \$100.00

Attorney fees and costs = \$22,819.96

Administration costs = \$0.00

Incentive award = \$0.00

Analysis^[2]

As PAGA necessitates, Plaintiff's counsel submitted a pre-suit notice letter and a copy of the settlement to the LWDA. (See Kim Decl., ¶¶ 7, 19, Ex. C.)

The Court finds as follows.

Gross Settlement Amount

The overall gross settlement amount is \$40,000.00, yet only \$100.00 applies to the individual PAGA claim. The \$100 amount is fair, reasonable and adequate given that Plaintiff only worked one day for Defendant, and the amount is undiscounted. (See Motion, p.

6 ["The \$100 figure is the full default initial-violation civil penalty for that pay period; no discount has been taken. The small ratio of \$100 to the global \$40,000 Settlement Sum reflects the natural arithmetic of a one-day, one-pay-period individual PAGA claim, not an artificial depression of the PAGA share."].)

Attorney Fees and Costs

The amount for attorney fees and costs (\$22,819.96) is fair, reasonable, and adequate for two reasons. One, it is the amount that the parties agreed to through arm's-length negotiations. (See Kim Decl., Ex. E, § 2(a)(3).) Two, because the settlement requires Defendant to pay the full civil penalty for the single-day pay period, the fees and costs have no negative impact on the amounts the LWDA and Plaintiff will receive.

Administration Costs

Plaintiff does not request administration costs.

Incentive Award

Plaintiff does not request an incentive award.

Release

The release states:

3. Release of Claims by Diouf.

(a) General Release. The release of claims set forth in this Section 3 shall not become operative, effective, or enforceable unless and until Plaintiff has received actual payment of the Settlement Sum as provided in Section 2(a) (the "Release Effective Date"). Prior to the Release Effective Date, no provision of this Section 3 shall be construed to release, waive, extinguish, or otherwise impair any claim Plaintiff holds against any Released Party. If the Settlement Sum is not paid in full for any reason, including without limitation denial of court approval of the individual PAGA settlement, this Section 3 shall be deemed void ab initio and of no force or effect. Subject to the foregoing, and only upon and after the Release Effective Date, Diouf, for and on behalf of himself and each of his heirs, administrators, executors, personal representatives, beneficiaries, successors and assigns, fully and completely releases London

Alley Entertainment LLC, and its parents, subsidiaries, affiliates, predecessors, successors, assigns, group companies and/or

related entities, and its and their current and former shareholders, directors, officers, employees, employee benefit plans and fiduciaries, professional employer organizations, managers, supervisors, members, partners, trustees, insurers, attorneys, and representatives and agents involved in the London Alley productions on which Claimant worked and the subsequent Arbitration, and transferees (collectively, the "Released Parties"), collectively, separately, and severally, of and from any and all claims, demands, damages, causes of action, debts, liabilities, controversies, judgments, and suits of every kind and nature whatsoever, foreseen and unforeseen, known and unknown, accrued and unaccrued, which Diouf has had, now has, or may have against the Released Parties (or any of them) from the beginning of time up until the time Diouf signs this Agreement, with the exception of (i) any claims which cannot legally be waived by private agreement; (ii) any claims which may arise after the date Diouf signs this Agreement; and (iii) any claims for breach of this Agreement. Subject to the limitations in

the immediately preceding sentence, this general release of claims includes without limitation all claims arising under any federal, state or local law, statute, rule, regulation, order, ordinance, constitutional provision or public policy, or at common law or equity, including without limitation all claims under Title VII of the Civil Rights Act of 1964, the Equal Pay Act, the Civil Rights Act of 1866, the Civil Rights Act of 1871, Executive Order 11246, the Employee Retirement Income Security Act (with respect to unvested benefits), the Consolidated Omnibus Budget Reconciliation Act, the Americans with Disabilities Act, the Rehabilitation Act, the Family and Medical Leave Act of 1993, the Age Discrimination in Employment Act, the Worker Adjustment and Retraining Notification Act, 31 U.S.C. § 3730(h), the anti-retaliation provisions of Section 21F of the Securities Exchange Act of 1934, the California Fair Employment and Housing Act, the California Family Rights Act, the California Labor Code, the California Private Attorneys General Act, the Fair Credit Reporting Act, the Genetic Information Non-Discrimination Act, the Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA), the Older Workers Benefit Protection Act (OWBPA), the Fair Labor Standards Act, the National Labor Relations Act (NLRA), and the California Business & Professions Code, all as amended; all claims for breach of any express or implied contract; all claims for breach of any covenant of good faith and fair dealing; all claims for promissory estoppel or detrimental reliance; all claims for wages, bonuses, incentive compensation, vacation, benefits and severance allowances or entitlements; all tort claims (including claims for fraud,

slander, libel, defamation, disparagement, assault, battery, false imprisonment, and emotional distress); all claims alleged or that could have been alleged in connection with the Action and Arbitration; all claims for compensatory, general, specific, exemplary, penalties, injunctive or specific relief or punitive damages, or any other claim for damages or injury of any kind whatsoever; and all claims for monetary recovery, including, without limitation, attorneys' fees, experts' fees, medical fees or expenses, costs and disbursements, and/or any other local, state, or federal regulation, executive order, statute, or public policy governing discrimination in employment, the payment of wages and/or Plaintiff's employment relationship with any Releasee, and any other claims based upon any act or omission of the Released Parties occurring prior to Plaintiff's execution of this Agreement. Notwithstanding anything herein to the contrary, the release of claims in this Section does not extend to workers' compensation benefits, to unemployment compensation benefits, or to any other rights or benefits that, as a matter of law, may not be waived, including but not limited to unwaivable rights Diouf might have under federal and/or state law. However, Diouf hereby irrevocably and unconditionally waives and relinquishes any right to seek or recover any individual relief (including any money damages, reinstatement, or other legal or equitable relief) for or on account of any of the claims released in this Agreement through any charge, complaint, lawsuit, or other proceeding, whether commenced or maintained by Diouf or by any other person or entity, with the exception of any right to receive an award for information provided to the Securities and Exchange Commission.

(b) Waiver of Unknown Claims.

Plaintiff acknowledges that he has been advised of California Civil Code Section 1542, which reads as follows:

A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS
THAT THE CREDITOR OR RELEASING PARTY DOES NOT KNOW OR SUSPECT TO EXIST IN HIS
OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR
HER, WOULD HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR OR
RELEASED PARTY.

Plaintiff agrees that he is waiving any and all rights he may have under California Civil Code Section 1542 with respect to the general release of claims in this Section 3. In connection with this waiver, Diouf acknowledges that he may hereafter discover claims presently unknown or unsuspected, or facts in addition to or different from

those which he may now know or believe to be true, with respect to the claims released pursuant to this Section 3.

Nevertheless, Diouf intends to and does by this Agreement release, fully, finally and forever, in the manner described in this Section 3, all such claims as provided therein. This Agreement shall constitute the full and absolute release of all claims and rights released in this Agreement, notwithstanding the discovery or existence of any additional or different claims or facts relating thereto.

(Id. at Ex. E, §§3-3(b),
underlining in original.)

The release is fair, reasonable, and adequate in that it appears to be limited to Plaintiff and does not seem to release claims belonging to the LWDA or other aggrieved employees.

Dismissal

Plaintiff's request to dismiss the representative PAGA claim without prejudice is fair, reasonable, and adequate. The request is granted.

[1] The Legislature has amended PAGA, changing the LWDA's recovery from 75% to 65% and the aggrieved employees' recovery from 25% to 35%. (See *Chin, et al.*, Cal.

Practice Guide: Employment Litigation (The Rutter Group 2025) ¶ 17:830.) The parties must ensure that the settlement complies with these percentages.

[2] The Court is only required to evaluate the PAGA part of the settlement.

The Court offers no opinion regarding the settlement's reasonableness as to Plaintiff's non-PAGA individual claims.